

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #

Date of filing:

-----X
VANESSA DELOATCH,

Plaintiff,

-against-

Plaintiff designates
Kings County as the
place of trial

Basis of the venue is
Locus of occurrence

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
J. MANETTA-Shield No. 11047, SERGEANT JOSEPH
LODATO-Shield No. 3131, POLICE OFFICER JESSICA
SCHRELL-Shield No. 26482 and JOHN DOES-Police
Officers as yet unidentified,

SUMMONS

County of Kings

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK

100 Church Street, New York, NY 10007

**POLICE OFFICER DANIEL J. MANETTA-
Shield No. 11047**

c/o New York City Police Department, 90th Precinct
211 Union Avenue, Brooklyn, NY 11211

SERGEANT JOSEPH LODATO-Shield No. 3131

c/o New York City Police Department, 90th Precinct
211 Union Avenue, Brooklyn, NY 11211

**POLICE OFFICER JESSICA SCHRELL-Shield
No. 26482**

c/o New York City Police Department, 90th Precinct
211 Union Avenue, Brooklyn, NY 11211

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.

16 Court Street, Suite 1717

Brooklyn, New York 11241

(718) 522-1020

Dated: Brooklyn, New York
September 18, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
VANESSA DELOATCH,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
J. MANETTA-Shield No. 11047, SERGEANT JOSEPH
LODATO-Shield No. 3131, POLICE OFFICER JESSICA
SCHRELL-Shield No. 26482 and JOHN DOES-Police
Officers as yet unidentified,

Defendants.

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Plaintiff by her attorneys, **RUBENSTEIN & RYNECKI, ESQS.**, complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF VANESSA DELOATCH**

1. That at all times hereinafter mentioned, plaintiff **VANESSA DELOATCH**, was
and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW
YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the
laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force
known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on December 5, 2019, and within the time prescribed by law, a

sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That a hearing pursuant to the General Municipal Law is in the process of being scheduled.

6. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, as agents, servants and/or employees.

7. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **VANESSA DELOATCH**, was lawfully present at or about the intersection of Boerum Street and Graham Avenue, County of Kings, City and State of New York.

8. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **VANESSA DELOATCH**, was falsely arrested by defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforementioned

location.

9. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, who falsely arrested the plaintiff, **VANESSA DELOATCH**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the false arrest on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, were working within the scope of their employment and authority with the defendant, **THE CITY OF NEW YORK**, when they arrested and confined the plaintiff **VANESSA DELOATCH**.

13. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on

reasonable grounds and not founded upon an arrest warrant.

14. By reason of said false arrest the plaintiff **VANESSA DELOATCH** was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF VANESSA DELOATCH**

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, who falsely arrested and violated the civil rights of the plaintiff, **VANESSA DELOATCH**.

18. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police**

Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

19. By the reason of the foregoing, the plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF VANESSA DELOATCH**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff **VANESSA DELOATCH**.

22. That the defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

23. By the reason of the foregoing, the plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL

**AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF VANESSA DELOATCH**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That the defendant, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, **VANESSA DELOATCH** through their actions.

26. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **VANESSA DELOATCH**.

27. That as a result of said intentional and negligent acts, the plaintiff, **VANESSA DELOATCH**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

28. By reason of the foregoing, the plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF VANESSA DELOATCH**

29. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

31. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047, SERGEANT JOSEPH LODATO-Shield No. 3131, POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **VANESSA DELOATCH**.

32. That on October 18, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **VANESSA DELOATCH** sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

33. By reason of the foregoing, plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF VANESSA DELOATCH**

34. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **VANESSA DELOATCH**.

36. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

37. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

38. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

39. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

40. As a direct and proximate result of this unlawful conduct, the plaintiff, **VANESSA DELOATCH**, sustained the damages hereinbefore alleged.

**AS AND FOR AN SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF VANESSA DELOATCH**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

43. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER DANIEL J. MANETTA-Shield No. 11047**, **SERGEANT JOSEPH LODATO-Shield No. 3131**, **POLICE OFFICER JESSICA SCHRELL-Shield No. 26482** and **JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.

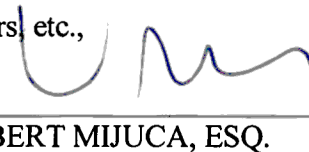
44. By the reason of the foregoing, the plaintiff, **VANESSA DELOATCH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **VANESSA DELOATCH**, demands judgment both

compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **VANESSA DELOATCH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **VANESSA DELOATCH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **VANESSA DELOATCH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **VANESSA DELOATCH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **VANESSA DELOATCH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the **Sixth** Cause of Action; plaintiff, **VANESSA DELOATCH** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
September 18, 2020

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.

Attorneys for Plaintiff

VANESSA DELOATCH
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK, COUNTY OF KINGS ss:

VANESSA DELOATCH, being duly sworn, says:

I am a Plaintiff In the action herein: I have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Brooklyn, New York

09-18-2020Vanessa DeLoatch
VANESSA DELOATCH

Subscribed and sworn to before me
this 18 day of September, 2020

K. A. Remigio
NOTARY PUBLIC

KHAREN REMIGIO
Commissioner of Deeds
City of New York No. 5-7523
Certificate Filed in New York County
Commission Expires: November 1, 2021